

24STCV25393 24STCV25393

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Alex Ashley v. Jaime Westbrook-Benn

TENTATIVE RULING

ANALYSIS

Background

Petitioner Melinda Alexander, guardian ad litem for Claimant Alex Ashley, an adult person with a disability, petitions the court to approve the compromise of a pending action on behalf of Claimant. (MC-350)

There is an order appointing guardian ad litem on file.

Opposition

No opposition was filed.

Legal Standard

An enforceable settlement of a minor's claim or that of a person lacking the capacity to make decisions can only be consummated with court approval. (Prob. Code., §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Sup.Ct.* (2012) 202 Cal.App.4th 1333, 1337.)

"[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests...[I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Sup. Ct.* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with California Rules of Court, rules 7.950, 7.951 and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has "any bearing upon the reasonableness" of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the minor or person who lacks capacity, and the

represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952.)

Petition:

The claimant is Alex Ashley, an adult person with a disability.

Claimant petitions, by and through guardian ad litem Melinda Alexander, the court to approve of the compromise that was reached through settlement negotiations.

The primary injuries sustained by Claimant are a subtrochanteric fracture of the right femur and fracture of the femoral shaft, sustained in a fall in January 2023, together with claimed emotional distress.

Forms MC-350 and MC-351 have been filed. Proof of service on other parties has been filed.

Notice of settlement has been filed.

Allocation:

Settlement: \$ 100,000.00

Medical Expenses: \$ 25,138.00

Attorneys' fees: The attorney's fees sought are unclear, and are either \$ 40,000.00 or \$27,693.70.

NET SETTLEMENT AMOUNT: It is unclear to the court whether \$ 34,862.00 or \$47,168.30 is the net settlement amount.

The proposed MC-351 provides for attorney's fees of \$27,693.70, while the MC-350 provides for attorney's fees of \$40,000.00. If the \$27,693.70 number were used, the correct net settlement would be \$47,168.30, not \$34,862.00. The petition and proposed order do not identify a single, consistent allocation of the settlement proceeds.

Medical Expenses:

The petition identifies \$262,960.17 in medical expenses before reductions and requests payment of \$25,138.00 to Medicare.

The final Medicare demand letter states that Medicare paid \$43,260.08 for medical care related to the incident and demands reimbursement of \$25,138.00. The MC-350, however, states in item 12(b)(3) that Medicare paid \$262,960.17 and received a statutory reduction of \$237,822.17 which yields the demanded reimbursement sum of \$25,138.00.

There are medical records documenting injuries and treatments. However, the attached records are all from the 2023 treatment and there is no doctor's report of the claimant's current condition.

Injuries are not completely healed. Item 8b states Claimant continues to experience pain in his shoulder and leg.

Costs & Attorney's Fees:

No costs are requested.

Counsel requests \$40,000.00 in attorney's fees in the MC-350, representing 40 percent of the gross settlement. The retention agreement provides for a 40-percent fee where settlement is reached more than 90 days after the action is filed. Counsel has submitted a declaration addressing the factors listed in California Rules of Court, rule 7.955. The declaration states that counsel represented Claimant for approximately two years, obtained the full available policy limit, bore the risk of a contingent recovery, and has received no compensation. However, the Court finds, and counsel concedes, that this case presented no novel or difficult issues, imposed no exceptional limitations or constraints, and required "at a minimum" approximately 20 hours of attorney time. The proposed MC-351 provides for attorney's fees of \$27,693.70 rather than the \$40,000.00 requested in the MC-350 and supporting declaration. The record does not explain the source of the \$27,693.70 figure.

Disposition of Settlement

The MC-350 checks item 18(b)(11) and requests that the \$34,862.00 net balance be paid or delivered to adult Claimant Alex Ashley. Attachment 18(b)(11) states that the proceeds will be placed in an ordinary Bank of America account in Claimant's name and will remain available to him for necessities such as rent, food, and clothing. The proposed MC-351, however, is inconsistent with that request. Although the order identifies the balance available to Claimant as \$34,862.00, item 8(b)(2) directs that a check for the entire \$100,000.00 gross settlement be paid to "Melinda Alexsander, guardian ad litem." This would distribute more than the stated net balance and deliver Claimant's recovery to the guardian ad litem rather than to Claimant as requested in the petition. The guardian ad litem's authority concerns representation of Claimant in this litigation and does not make her the custodian of Claimant's property.

Usually these funds are deposited in an annuity, or in a blocked account, or special needs trust. Counsel will need to address with a memo outlying the law, whether this settlement requires a special needs trust.

Disposition:

The settlement of \$100,000.00 appears to be fair and reasonable, as the full applicable policy limit. However, the proposed disposition of the net proceeds is not consistent between the MC-350 and MC-351. The settlement also cannot be approved because the petition and proposed order contain discrepancies concerning the medical expenses calculation, the attorney's fees, and the disposition of Claimant's proceeds, and because there is no doctor's report of claimant's current condition. Moreover, it is not clear whether the Claimant is a person with special needs such the a the requirements of a special needs trust must be met for this Court to approve the compromise.

The OSC is CONTINUED to November 30, 2026 at 9:00 a.m. for Petitioner to remedy the deficiencies. Corrected filings must be submitted no later than October 31, 2026 so that the Court has time to review them prior to the hearing.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and

there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.